

Smt. Pooja Kariya vs Deepak Kariya on 1 October, 2024

Author: Prem Narayan Singh

Bench: Prem Narayan Singh

NEUTRAL CITATION NO. 2024:MPHC-IND:28850

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IN THE HIGH COURT OF MADHYA PRADESH
AT INDORE
BEFORE
HON'BLE SHRI JUSTICE PREM NARAYAN SINGH
CRIMINAL REVISION No. 1731 of 2024
SMT. POOJA KARIYA AND OTHERS
Versus
DEEPAK KARIYA

Appearance:

Shri Nikhil Basantani, advocate for the petitioner.

Ms. Shubhangi Solanki, learned counsel for the respondent.

Reserved on: 10.09.2024

Delivered on: 01.10.2024

This revision having been heard and reserved for orders, on for pronouncement this day, the court passed the following:

ORDER

1. The petitioner has preferred the present petition under Section 19(4) of the Family Court Act read with Section 397/401 of the Code of Criminal Procedure, 1973 being aggrieved by the judgment dated 16.02.2024 passed by Principal Judge, Family Court, Indore in MJCR/506/2023 whereby the application filed under Section 125 of Cr.P.C. by the petitioners was rejected by placing reliance upon the interim order dated 21.04.2023 passed by Principal Judge, Family Court, Bhopal in RCSHM-597/2021 wherein the application filed under NEUTRAL CITATION NO. 2024:MPHC-IND:28850 2 CRR-1731-2024 Section 24 of Hindu Marriage Act, 1955 was dismissed by holding that the petitioner no.1 is capable of maintaining herself and petitioner no.2/daughter.

2. In the course of arguments learned counsel for the petitioners submitted that the trial Court has not properly considered the law laid down in Rajnesh vs. Neha & Anr. reported as (2021)2 SCC 324 and also not properly appreciated the provision of Section 41 of Evidence Act. Actually, interim maintenance awarded under Section 24 of Hindu Marriage Act, 1955 is always awarded on the

evidence available on record, while considering the application under Section 125 of Cr.P.C the award of maintenance is based on the inability of the petitioner for their maintenance. Hence the findings of trial Court on the basis of the provisions of Section 41 of Evidence Act is not correct in accordance with law, therefore, it is required to be modified.

3. It is further submitted that the petitioner no.1 has no earning capacity and only on the basis that she is doing something and taking tuition classes for her livelihood cannot devoid her from getting maintenance from her husband. Under these conditions, learned counsel for the petitioners prayed for grant of interim maintenance.

4. On the contrary, learned counsel for the respondent/ husband submitted that the petitioner no.1 is a well educated lady, taking tuitions from which she is earning approx.Rs.20,000/- per month. The NEUTRAL CITATION NO. 2024:MPHC-IND:28850 3 CRR-1731-2024 respondent left Dubai in the year 2019 and settled in India. He is having a dependant mother, who is a widow aged about 62 years and suffering from old aged diseases, hence petitioner is having the burden of her medical treatment expenses, therefore, he supported the impugned order and prayed for rejection of the revision petition.

5. Heard learned counsel for the parties and perused the record.

6. Before dwelling upon the aspect, it is to be kept in mind that this order will decide only order of interim maintenance. So far as the contentions regarding order passed under Section 24 of Hindu Marriage Act, 1955 is concerned, that order has different aspect. While the provisions of Section 125 of Cr.P.C is made only for destitute ladies and children who have been renounced by husband. So far as the law in this regard is concerned every husband is liable to main his child even he is a labourer or unemployed.

7. Considering all the aspects and the facts available on record, this Court is of the view that it would be appropriate to award Rs.2000/- each to petitioner no.1/wife and petitioner no.2/child per month as interim maintenance. Accordingly, the petition stands disposed of with a direction that the respondent/husband shall pay interim maintenance of Rs.2000/- to petitioner no.1 and Rs.2,000/- in favour of petitioner No. 2/daughter. So far as the initiation of maintenance amount is concerned, the same shall be paid from the date of filing of the application under Section 125 of Cr.P.C.

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8. Respondent/husband is directed to pay arrears of maintenance amount, within three months from the date of this order and shall also pay the regular monthly amount of interim maintenance as directed aforesaid.

9. Trial Court concerned is directed to expedite and conclude the trial as early as possible, preferably within six months from the date of receipt of certified copy of this order.

10. A copy of this order be sent to the learned trial Court concerned for information.

11. With the aforesaid directions, the petition stands disposed of.

Certified copy, as per rules.

(PREM NARAYAN SINGH) JUDGE sumathi